

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution No. 92-10

**Delegation of Authority to Negotiate for and to Purchase
or Lease Real Property**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the authorization to purchase or lease real property is imperative to the successful negotiation for said purchase or lease, and

WHEREAS, the delegation of such authorization is a power of the Legislature.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes the Governor of the Chickasaw Nation to negotiate for and to purchase or to lease real property that the Land Development Committee has recommended is desirable to purchase or to lease and that the Chickasaw Tribal Legislature has approved to purchase or to lease up to the highest appraisal approved by the Land Development Committee and the Chairperson of the Tribal Legislature.

BE IT FURTHER RESOLVED, that any purchase price paid for the acquisition of any specific piece of real property may not exceed the appraised valuation of said real property, unless and until the Legislature has approved, by resolution, said specific purchase price.

BE IT FURTHER RESOLVED, that the Governor shall provide the Legislature with copies of all documentation relevant to the purchase or lease of any real property within thirty (30) days of the final acquisition or lease.

Executed in regular session of the Chickasaw Tribal Legislature,
meeting at Ada, Oklahoma, on September 18, 1992, by a vote of
12 ayes, 0 nays, and 0 abstentions.

Robert H. Mallett
Chairperson
Chickasaw Tribal Legislature

Lisa Shephard
Secretary
Chickasaw Tribal Legislature

Concur:

Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 18 1992

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Delegation of Authority to Negotiate for and to Purchase
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Explanation: The Chickasaw Tribal Legislature authorizes the Governor of the Chickasaw Nation to negotiate for and to purchase or to lease real property that the Land Development Committee has recommended is desirable to purchase or to lease and that the Chickasaw Tribal Legislature has approved to purchase or to lease; that any purchase price paid for the acquisition of any specific piece of real property may not exceed by more than ten percent (10%) the highest Bureau of Indian Affairs appraised valuation of said real property, unless and until the Legislature has approved, by resolution, said specific purchase price; that the Governor shall provide the Legislature with copies of all documentation relevant to the purchase or lease of any real property within thirty (30) days of the final acquisition or lease.

Recommended by: Land Development Committee

Presented by: Mr. Gary Carter, Chairman